

fined or amerced by the Act of 18 H. 8. and that was not Bonham, as by the reasons and causes aforesaid appears. And admitting that the replication be not material, and the defendants have demurred upon it; yet forasmuch as the defendants have confessed in the Bar, that they have imprisoned the plaintiff without cause, the plaintiff shall have judgment: and the difference is, when the plaintiff replies, and by his replication it appears that he has no cause of action, there he shall never have judgment: but when the (a) bar is insufficient in matter, or amounts (as the case is) to a confession of the point of the action, and the plaintiff replies, and shews the truth of the matter to enforce his case, and in judgment of law it is not material, yet the plaintiff shall have judgment, for it is true that sometimes the declaration shall be made good by the bar, and sometimes the bar by the replication, and sometimes the replication by the rejoinder, &c. but the difference is, when the declaration wants time, place, or other circumstance, it may be made good by the bar; so of the bar, replication, &c. as appears in 18 E. 4. 16 b. But when the declaration wants substance, no bar can make it good; so of the bar, replication, &c. and therewith agrees 6 E. 4. 2. a good case, and *nota* there *dictum* Coke. *Vide* 18 E. 3. 34 b. 44 E. 3. 7 a. 12 E. 4. 6. 6 H. 7. 10. 7 H. 7. 3. 11 H. 4. 24. &c. (E).

But when the plaintiff makes replication, sur-rejoinder, &c. and thereby it appears, that upon the † whole record the plaintiff has no cause of action, he shall never have judgment, although the bar or rejoinder, &c. be insufficient in matter; for the Court ought to judge upon the whole record (F), and every one shall be intended to make the best of his own case. *Vide* (b) *Ridgeway's case*, in the Third Part of my Reports 52 b. and so these differences were resolved and adjudged between ‡ *Kendal and Helyer*, Mich. 25 & 26 Eliz. in the King's Bench, and Mich. 29 & 30 Eliz. in the same Court, between (c) *Gallys and Burbry*.

And Coke, Chief Justice, in the conclusion of his argument, observed seven things for the better direction of the president and commonalty of the said college for the future. 1. That none can be punished for practising physick in London, but by forfeiture of 5l. by the month, which is to be recovered by the law. 2. If any practise physick there for a less time than a month, that he shall forfeit nothing. 3. If any person prohibited by the statute offends in *non bene exeq'*, &c. they may punish him according to the statute within the month. 4. Those who they may commit to prison by the stat. ought to be committed (d) presently. 5. The fines which they [121 a] set, according to the statute, belong to the King. 6. They cannot impose a fine, or imprisonment without a record of it. 7. The cause for which they impose fine and imprisonment ought to be certain, for it is (a) traversable: for although they have letters patent and an Act of Parliament, yet because the party grieved has no other remedy, neither by writ of error or otherwise, and they are not made judges, nor a Court given them, but have an (b) authority only to do it, the cause of their commitment only is traversable in an action of false imprisonment brought against them (c); as upon the Statute of (c) Bankrupts, their warrant is

(a) 9 Co. 110 b. and ref. Moor. 464. 1 Lev. 195.

(E) *Vid.* note (c) *Bull's case*, ante 7 Co. 25 a. *Tippet v. May*, 1 Bos. and Pull. 413.

† Hob. 199. Hard. 38.

(F) *Vid.* Com. Dig. Pleader, C. 85. E. 37. and 1 Williams' Saunders, *Cutler v. Southern*, 118. *Vid.* also note (F) *Fraunces's case*, ante p. 93 a.

(b) Styles 354.

(†) 3 Co. 52 b.

(c) 3 Co. 52 b. Cro. El. 62. 1 Leon. 242.

(d) *Antea* 119 b. 2 Brownl. 266. 2 Inst. 380. Bar. 44. Br. Account 6. Br. Det. 16. Br. Exec. 135. Br. Faux Imprisonment 32. 2 Bulstr. 139. 6 Mod. 125. 4 B. and C. 596.

(a) 2 Brown. 266. Hard. 482.

(b) *Ante* 119 b.

(c) 13 El. c. 1. 1 Jac. cap. 15.

(G) In *Groenvelt v. Burwell*, 1 Ld. Raym. 468. Holt, C.J. observed, that "the opinion of Coke, that the case of the fine and imprisonment is traversable was an opinion *obiter*, and not pertinent to the case there; because Dr. Bonham was committed for practising without licence, and not for malpractice; and the power of